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U.S. Department of State Diplomacy in Action

Philippines

Country Reports on Human Rights Practices

Bureau of Democracy, Human Rights, and Labor

1999

February 23, 2000

The Philippines is a democratic republic with an elected president, a bicameral legislature, and a functioning political party system. President Joseph Estrada took office in June 1998. The Government is pursuing actively a negotiated settlement with Muslim separatists. An uneasy truce exists between insurgents and government forces. Sporadic clashes between government forces and the main Communist insurgent group led to a variety of human rights abuses by both sides. The judiciary is independent, but suffers from inefficiency and corruption.

The Department of National Defense directs the Armed Forces of the Philippines (AFP), and the Department of Interior and Local Government (DILG) has authority over the civilian Philippine National Police (PNP). The AFP, which has primary responsibility for antiinsurgency operations, also is involved in traditional law enforcement efforts, including the pursuit of kidnapers, a chronic criminal problem. Some members of the security forces, including police, soldiers, and local civilian militias, committed human rights abuses, often in the context of counterinsurgency operations.

The Philippines has a market-based, mixed economy. Agriculture contributes about 20 percent of gross domestic product (GDP), but accounts for nearly 40 percent of employment. Principal crops include corn, sugar, and rice, most of which are consumed domestically. Export crops include coconut and fruits. Manufacturing, particularly electronics and electronic components, accounts for nearly two-thirds of export receipts; this export growth continued to be strong in spite of the recent regional economic downturn. Per capita GDP in January was approximately \$886. Income distribution is highly skewed: The richest 30 percent of families earned about 63.4 percent of the national income, while the poorest 30 percent receive only 9.3 percent of income. Urban incomes average 2.43 times rural incomes.

The Government generally respected the human rights of citizens; however, there were problems in some areas. Members of the security services were responsible for extrajudicial killings, torture, disappearances, arbitrary arrest and detention, and other physical abuse of suspects and detainees. Police corruption remains a problem. Prison conditions are harsh. The Government's Commission on Human Rights (CHR), established by the 1986 Constitution, in January described the PNP as the leading abuser of human rights, followed by the Communist New People's Army (NPA), and the AFP. Some abuses were committed by police and military personnel while involved in criminal activities such as kidnap gangs, drug trafficking, and illegal logging. Police leaders at times appeared to sanction brutality and extralegal killings as expedient means of fighting crime. The Government has taken few effective steps to stop military and police abuses, although police officers have been sentenced to death for murder convictions. The Government has been ineffective in reforming the police, the military forces, or the court system, with its poorly paid, overburdened judges and prosecutors. The court system remains susceptible to the

influence of the wealthy and powerful, while failing to provide equal justice for others. The courts are hobbled by backlogs and limited resources, and long delays in trials are common. The authorities failed to prosecute many persons who broke the law.

The President's Antiorganized Crime Task Force made significant progress during the year against kidnap gangs; however, the Estrada administration's support for the Task Force Chief, an otherwise effective police officer often accused of human rights abuses, caused some to question the Government's commitment to police reform. The Government at times infringed on citizens' privacy rights. There was an increase in the Government's forcible displacement of squatters from their illegal urban dwellings to make way for industrial and real estate development projects, which often led to disputes and human rights abuses.

An estimated 5 to 6 million citizens living abroad are disenfranchised because the Congress still has not enacted absentee voting, as required by the Constitution. The CHR, whose primary mission is to investigate complaints of human rights violations, expanded the local monitoring system; at midyear there were more than 13,000 local human rights officers nationwide, up from 8,000 at the end of 1998. However, some local military and police forces harassed human rights activists. Violence and discrimination against women and abuse of children continued to be serious problems. Discrimination against indigenous people and Muslims persists. Rural poverty and family displacement are major causes of the continuing child labor problem, which the Government has addressed only partially. Forced labor, including forced child prostitution, is a problem. Trafficking in women and children is a problem.

Communist and Muslim insurgent groups, including the Moro Islamic Liberation Front (MILF), and the Communist New Peoples' Army (NPA) committed serious abuses, including extrajudicial killings, kidnappings, torture, and detentions. The NPA's use of children as armed combatants and noncombatants increased significantly.

RESPECT FOR HUMAN RIGHTS

Section 1. Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

Police and military forces committed extrajudicial killings. The CHR investigated 185 extrajudicial killings during the year, compared with 201 in 1998. The CHR includes killings by antigovernment insurgents in its totals. The nongovernmental organization (NGO) Task Force Detainees of the Philippines (TFDP) reported that 18 civilians were killed for political reasons from mid-1998 through June; 11 were victims of extrajudicial executions carried out by government forces.

In combating criminal organizations, police personnel sometimes resorted to summary execution of suspects, or "salvaging." Police spokesmen later reportedly misrepresented these killings as an unavoidable result of a reported exchange of gunfire with the suspects. The CHR reported that members of the PNP were responsible for 22 percent of the human rights violations involving deaths that it investigated during the year.

In April the head of President Estrada's Antiorganized Crime Task Force, Police General Panfilo Lacson, won a controversial dismissal of murder charges against himself and 25 police colleagues for their alleged involvement in the Kuratong Baleleng case, in which 11 robbery suspects allegedly were killed while in PNP custody in 1995. Despite eyewitness testimony, the case languished without trial for 4 years. The witnesses eventually retracted their testimony after facing reported intimidation and apparent bribery.

In March a member of the anticrime task force was charged with killing a community leader in Quirino province, reportedly on the orders of a senior provincial official. Also in March, three mid-ranking police officers were indicted for the murder of three criminal suspects. Investigations indicated that the police killings were in retribution for the suspects' failure to pay for police

protection with a portion of the money that they stole. In Tarlac province in March, a survivor of a failed police "execution" in March pressed charges against the officers and was killed by a local police chief while ostensibly under guard at a hospital. The police chief, a graduate of the Philippine Military Academy, was dismissed from the PNP and faces criminal charges.

According to the TFDP, three migrant workers at a sugar plantation in Negros Occidental province were killed by AFP members in March. The military services stated that the victims were members of the Revolutionary Proletarian Army (RPA), an offshoot of the NPA. However, the plantation owner reportedly claimed that the victims were farmers from Panay island who had come to Negros island in search of work.

In August the bodies of four men, two of whom were confirmed NPA members, were recovered in Mawab in the province of Compostela Valley in Mindanao. Three of the bodies bore multiple gunshot wounds and torture marks (see Section 1.c.). The four men had been arrested by members of the PNP's 60th Infantry Battalion the day before.

MILF "courts" executed many persons during the year (see Section 1.e.).

The NPA claimed responsibility for several killings, including the December 31 "execution" of former priest and former NPA leader Conrado Balweg.

b. Disappearance

The CHR cited 10 instances of involuntary disappearance for the first 9 months of the year, compared with 10 in 1998. The TFDP reported two disappearances from mid-1998 through mid-1999. One victim in March was a labor leader who failed to return home after a meeting. The international NGO Families of Victims of Involuntary Disappearance (FIND), reported 6 instances of involuntary disappearance from mid-1998 through year's end.

The courts and the police have failed to address complaints of victims' families concerning numerous past disappearances. FIND and Amnesty International's Manila office continued to support the efforts of the victims' families' to press charges, but in most cases evidence and documentation are unavailable. Court inaction on these cases contributes to a climate of impunity that undermines confidence in the justice system.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Constitution prohibits torture, and evidence obtained through its use is legally inadmissible in court; however, members of the security forces and police continued to use torture and otherwise abuse suspects and detainees. The CHR provides the police with human rights training, including primers on the rights of suspects; however, such training is voluntary. Police awareness of the rights of those in custody remains poor. Attorneys in legal reform and public defender groups reported that the most common forms of abuse during arrest and interrogation as "mauling," slapping, hitting with clubs, and using guns to poke suspects.

Authorities reportedly tortured three suspected NPA members after their arrests in Compostela Valley province in January. The perpetrators reportedly were former members of a civilian armed forces geographical unit, a militia supported by the army.

The PNP, in response to growing criticism of alleged criminal activity by its officers, established a "Human Rights Desk" to take complaints and strengthen human rights training. The PNP dismissed one officer and detained or suspended nine others through November.

Prison conditions are harsh. Provincial jails and prisons are overcrowded, have limited exercise and sanitary facilities, and provide prisoners with an inadequate diet. Administrators reportedly budget a daily subsistence allowance of about \$0.75 (30 pesos). Prison inmates often depend on their families for food because of the insufficient subsistence allowance. Male and female inmates are held in separate facilities, overseen by guards of the same sex. The exception is the Bureau of

Immigration and Deportation detention facility, which segregates male and female inmates, but both are overseen by male guards. Women and children still are being held in facilities not fully segregated from adult male inmates. There were reports that guards abused prisoners. Female prisoners in particular are at risk of sexual assault.

Official corruption is a serious problem in the prison system. Jail administrators reportedly delegate authority to maintain order to senior inmates. Some prominent prisoners and jailed celebrities receive preferential treatment. Favored inmates reportedly enjoy access to outside contacts, enabling them to trade in prostitution and drugs.

According to the penal authorities, there were over 57,000 persons held in national and provincial prisons in November. Many were detained there at the discretion of local law enforcement authorities without benefit of a trial. Through September the CHR helped 46 prisoners and detainees obtain paroles or pardons.

International monitoring groups, the International Committee of the Red Cross, and foreign embassy officials are allowed free access to jails and prisons. There were no credible reports that prisoners died due to prison conditions or treatment during the year.

d. Arbitrary arrest, Detention, or Exile

The Constitution requires a judicial determination of probable cause before issuance of an arrest warrant and prohibits holding prisoners incommunicado or in secret places of detention; however, police in some cases arrested and detained citizens arbitrarily. The CHR listed 98 cases of illegal arrest and detention during the first 9 months of the year, compared with 59 in 1998. The TFDP documented 48 politically motivated arrests during the period from mid-1998 to mid-1999. With regard to civil and political rights, the TFDP documents only violations committed by the Government against suspected members of the Communist Party of the Philippines, the NPA, or other insurgent or opposition groups. The Government denies that there are any political detainees.

Detainees have the right to a judicial review of the legality of their detention and, except for offenses punishable by a life sentence or death (when evidence of guilt is strong), the right to bail. Authorities are required to file charges within 12 to 36 hours of arrests made without warrants, depending on the seriousness of the crime for which the arrest was made.

In June Vicente Ladlad, a National Democratic Front consultant and Communist peace negotiator, was arrested for illegal possession of a firearm. He was detained for 9 days before being released on bail. Subsequently he was accused of plotting the killing of top government leaders. Left-wing groups insisted that Ladlad was a victim of a government effort to eliminate members of revolutionary groups by depicting them as common criminals.

The NPA and the MILF were responsible for a significant number of arbitrary arrests and detentions, often in connection with informal courts set up to try military personnel, police, local politicians, and civilians for "crimes against the people." (see Section 1.e.).

In February two army officers, one a general, were abducted by the NPA near Davao City. In a separate incident also in February, the NPA kidnaped a police officer in Bicol province. In March the NPA kidnaped an army sergeant. In April these four persons, together with a police officer held by the NPA since February 1998, were freed after the Government refused to meet the NPA's demand to release NPA prisoners convicted of crimes.

Forced exile is illegal and is not practiced.

e. Denial of Fair Public Trial

The Constitution provides for an independent judiciary, but the judicial system suffers from corruption and inefficiency. Personal ties undermine the commitment of some employees of some government institutions to ensuring due process and equal justice, resulting in impunity for those who commit offenses but who are rich and influential.

The national court system consists of four levels: Local and regional trial courts; a national court of appeals divided into 15 divisions; a 15-member Supreme Court; and an informal local system for arbitrating or mediating certain problems outside the formal court system. The Sandiganbayan, the Government's anticorruption court, hears criminal cases of misconduct brought against officials.

The Constitution provides that those accused of crimes be informed of the charges against them, have the right to counsel, and be provided a speedy and public trial. Defendants are presumed innocent and have the right to confront witnesses against them, to present evidence, and to appeal convictions. The authorities respect the right of defendants to be represented by a lawyer, although poverty often inhibits a defendant's access to effective legal representation. The public attorney's office is staffed by highly skilled and motivated defense lawyers, but the workload is daunting and resources are scarce.

Legal experts inside and outside the justice system also criticize personal and professional relationships between some judges and individual or corporate litigants. Some lawyers act as "case fixers," gaining the favor of judges and other court officials, and allegedly bribe some witnesses. Technically it is illegal to settle criminal cases out of court, but the practice of reaching an "amicable settlement" is routine. In some cases, without key victims or witnesses to testify, prosecution is problematic.

The pace of justice is slow. The court system is unable to assure detained persons expeditious trials. There is a widely recognized need for more prosecutors, judges, and courtrooms. Approximately 700 of 2,130 judgeships nationwide remain vacant for lack of qualified applicants. Vacancies in provincial capitals are unattractive to many jurists. In other cases, judges' salaries are considered too low in comparison with other opportunities. Low pay also renders some prosecutors susceptible to corruption.

According to the Constitution, cases are to be resolved within set time limits once submitted for decision: 24 months for the Supreme Court; 12 for the court of appeals; and 3 months for lower courts. There are no time limits for trials. Because of numerous technical delays and frequent failures of judges and prosecutors to appear, trials can last many months. Officials in the Labor and Social Welfare Departments complain that prosecutors often fail to follow up on cases involving child labor violations (see Section 6.d.).

The CHR reported that about 36 percent of the human rights cases that it referred to courts and other government agencies were resolved, and that the courts dismissed 158 cases that went to trial. The Supreme Court, which reviews all death sentences, commuted some death sentences and overturned others.

The Crusade Against Violence, an NGO representing families of crime victims, reported some success in providing families with legal advice, monitoring court processes, and spurring prosecutors to address cases despite the efforts of local criminal organizations or public officials to hinder proceedings.

There were no credible reports of attempts to intimidate attorneys involved in human rights cases.

Amnesty International criticized the apparent unfairness in many of the court proceedings that result in death sentences, stating that the judicial system does not ensure the rights of defendants to due process and legal representation. At times defendants in such cases had no lawyers to assist them when they were arrested, indicted, and brought to trial.

Indemnification claims for alleged human rights abuses during the Ferdinand Marcos era, which ended in 1986, remain unsolved. A government-brokered agreement that appeared near success early in the year collapsed under criticism of its immunity provisions for the Marcos family, and the presiding judge of the Sandiganbayan refused to release \$150 million in escrowed Marcos funds.

Reflecting the MILF's claim to recognition as an independent state in areas that it controls, MILF spokesmen asserted their Shari'a (Islamic law) courts have criminal jurisdiction, and the MILF executed several alleged criminals during the year.

The NPA and the MILF were responsible for a significant number of arbitrary arrests and detentions, often in connection with informal courts set up to try military personnel, police, local politicians, and civilians for "crimes against the people." The NPA continued to try these defendants in its courts. The NPA claimed responsibility for several killings, including the December 31 "execution" of former priest and former NPA leader Conrado Balweg (see Section 1.a.).

The TFDP and the Philippine Alliance of Human Rights Advocates, a leading NGO network, reported that there were at least 160 political prisoners held at year's end, compared with 147 held at the end of 1998. The Government denies that it holds political prisoners, contending that those jailed for political reasons in fact were convicted for common crimes. Frequently political prisoners counted by the TFDP were convicted of the illegal possession of firearms. The TFDP asserts that the authorities deliberately "criminalize" political offender cases in order to strip political prisoners of public sympathy. There are differences of opinion even within the CHR; some members of the Commission believe that certain persons are incarcerated for political reasons, but other members believe that the same persons are guilty of common crimes.

The Presidential Committee on Grant of Bail, Release, or Pardon claims that some political prisoners remain in custody.

In February the Technical Working Group of the Presidential Committee on Grant of Bail, Release, or Pardon Committee recommended the release of 61 prisoners whom it deemed had been convicted mainly because of the legitimate exercise of their political beliefs. However, after the NPA kidnaped an AFP general and four other members of the armed forces early in the year, President Estrada deferred action on the Working Group's recommendation. The AFP prisoners were released by the NPA in April. In December the President pardoned and ordered the release of 11 of the 61 prisoners. He reportedly stated that most of those given pardon were political prisoners. The Government indicated its intention to pardon and release the remaining 50 if their appeals were withdrawn.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The Constitution provides that a judge may issue search warrants on a finding of probable cause. Restrictions on search and seizure within private homes generally are respected, although searches without warrants do occur. Judges have declared evidence obtained illegally to be inadmissible.

There were reports that the Presidential Antiorganized Crime Task Force placed illegal wiretaps on the telephones of government officials and military officers identified with opposition parties.

Having campaigned as the "pro-poor" candidate, President Estrada early in his administration sought to avoid confrontations with squatter communities; however, there was an increase in the forcible displacement of urban "squatters" to make room for infrastructure and commercial developments. The law provides certain protections for squatters; eviction often is difficult, especially because politicians generally recognize squatters' voting power. The CHR classified as human rights violations nine instances of community demolition by the Government through September. In many instances, the Government did not offer relocation sites to displaced families, as required by law. The NGO Ecumenical Commission for Displaced Families (ECDFC) reported seven mass displacements due to government demolition of houses for economic purposes. These actions affected 15,876 citizens in 2,646 families, mostly in the Manila area.

g. Use of Excessive Force and Violations of Humanitarian Law in Internal Conflicts

Periodic AFP clashes with the main remaining Islamic Insurgent Group, the Moro Islamic Liberation Front (MILF) continued to inflict hardships on civilians. Most of the fighting took place in western Mindanao provinces and was related to the control of territory, a central issue in the Government's peace talks with the MILF. Displaced families fear being caught in the crossfire or becoming casualties as a result artillery exchanges or bombings near their areas of residence.

According to the ECDFC, 27 incidents of armed clashes between the AFP and the MILF, NPA, or other paramilitary groups in Mindanao and in Bohol provinces in the Visayas displaced an estimated 304,908 noncombatants. Some Muslim families in Mindanao suffered recurrent displacements. Although neither the government forces nor the insurgents appeared to target

civilian populations or restrict food supplies, there were periodic food shortages in some areas associated with the large number of displaced families.

During November Government and the MILF clashed in North Cotabato and Maguindanao provinces in Mindanao. A reported 45 combatants on both sides were killed in the fighting. An estimated 6,000 persons reportedly were displaced during the skirmishes.

In June the CHR protested the increased recruitment of minors (boys and girls under the age of 18) by the Communist NPA. The growing number of NPA members under 18 years of age who were captured or surrendered to government forces confirmed the widespread use of children in both combat and noncombat roles by the NPA. The Department of Social Welfare and Development (DSWD) provided care and assistance to these children after they were turned over by the military to the civilian authorities (see Sections 5 and 6.d.).

Section 2. Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press, and the Government generally respects this right in practice.

The Philippine Press Institute (PPI) is active in helping investigate cases of harassment of journalists. The PPI favors the repeal of legislation banning political advertising in the media. It believes that the total ban, enacted in the interest of fairness, favors incumbents and deprives new candidates of the opportunity to make their views known.

The Government respects academic freedom.

b. Freedom of Peaceful Assembly and Association

The Constitution provides for freedom of peaceful assembly and association, and the Government respects these rights in practice.

c. Freedom of Religion

The Constitution provides for freedom of religion, and the Government respects this right in practice.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

Citizens enjoy the freedom to change their places of residence and employment. Travel abroad is limited only in rare circumstances, such as pending court cases. Government authorities discourage travel by vulnerable workers such as young women to areas where they face personal risk (see Section 6.f.). The Philippine Overseas Employment Administration (POEA) seeks to limit departures for work abroad to only those persons whom the POEA certifies as qualified for the jobs. An estimated 5 to 6 million citizens work overseas and remit money home amounting to nearly 10 percent of the GNP.

There is no comprehensive legislation that provides for granting refugee and asylee status in accordance with the provisions of the 1951 U.N. Convention Relating to the Status of Refugees and its 1967 Protocol. The Refugee Unit in the Department of Justice determines which asylum seekers qualify as refugees; this serves to implement many of the basic provisions of the 1951 U.N. Convention.

The Government provides first asylum.

The Government continued to allow approximately 1,600 asylum seekers from Vietnam to remain in the country. All were "screened out" from refugee status. Most now live in major urban areas. There is significant popular support, particularly from the Roman Catholic Church, for allowing the permanent stay of those asylum seekers who do not wish to repatriate and are ineligible for resettlement in other countries. The Government continued to encourage voluntary repatriation of these asylum seekers. The Government has not ruled out forcible repatriation, although that action is unlikely. There were no reports of the forced return of persons to a country where they feared persecution.

Section 3. Respect for Political Rights: The Right of Citizens to Change Their Government

The Constitution provides citizens with the right to change their government peacefully, and citizens exercise this right through periodic elections that are largely free and fair and held on the basis of universal suffrage. However, Congress has yet to enact a system for absentee voting as required by the Constitution. This affects an estimated 5 to 6 million potential voters or about 10 percent of the electorate, most of whom are expatriates. The party of President Estrada continued to hold large majorities in both the House of Representatives and the Senate.

The Government attempted to bring disadvantaged groups into the political process using the party list system. Along with many other citizens, Muslims argue that the method of election of senators from a nationwide list favors the established political figures from the Manila area. Election of senators by region would require a constitutional amendment, but it is favored by many Muslims and members of other disadvantaged groups who are underrepresented in the national legislature. There are no Muslim senators, and none of President Estrada's cabinet members are Muslims. However, the House of Representatives has nine Muslim members, including some elected from Christian majority districts.

There are no restrictions in law or practice on participation by women and members of minorities in politics. The Vice President is a woman; she received more votes than the President did in the last national elections. There are two female cabinet members. There are 4 women in the 22-member Senate, and 25 women in the 222-member House of Representatives.

Section 4. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A wide variety of human rights groups operated without government restriction, investigating and publishing their findings on human rights cases. Many government officials, including those of the CHR, are responsive to their views. Some domestic NGO's were critical of the Estrada administration's human rights record; these NGO's also had criticized previous Presidents' human rights records. In September the CHR hosted a regional conference of national human rights commissions with participation by domestic, regional, and international NGO's. Domestic NGO's were given the opportunity to criticize the CHR publicly and did so.

The Philippine Alliance of Human Rights Advocates, a leading NGO network, effectively monitors human rights problems and seeks redress through its contacts with government agencies, the Congress, and the CHR. Human rights activists continued to encounter minor harassment, chiefly by police or military units or detachments based in the localities in which the incidents were reported.

The CHR further augmented the system of local ("barangay") human rights officers who monitor local authorities and report complaints to regional CHR offices. There were more than 13,000 local human rights officers at year-end compared with approximately 8,000 in December 1998.

Section 5. Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Constitution prohibits discrimination against women, children, and members of minorities. Implementation of constitutional protections at times is hindered by the lack of specific regulations and by budgetary constraints.

Women

Violence against women, particularly domestic violence, remains a serious societal problem. Rape is illegal and in certain cases punishable by death. Spousal rape and abuse also are illegal, but enforcement is ineffective. Women's advocates cite the lack of laws on domestic violence, double standards of morality, and a traditional societal reluctance to discuss private family affairs as some of the reasons for domestic violence. The absence of divorce under the law and limited job opportunities combine to limit the ability of both poor and wealthy women to escape destructive relationships.

The PNP and DSWD both maintain women's help desks to protect victims of violence against women and to encourage the reporting of crimes. Their role was strengthened further by Vice President Gloria Macapagal-Arroyo, who served concurrently as the secretary of the DSWD and continued to give women's issues a high public profile during the year. Many PNP stations included female officers. With the assistance of NGO's, some male officers received gender sensitivity training to assist victims of sexual crimes and domestic violence.

Rape continued to be a major problem as the number of rapes reported to the police has risen by about 16 percent annually since 1992. The PNP reported that it investigated 3,283 cases of rape through November; 70 percent of the alleged perpetrators were arrested. However, some women's groups stated that courts' imposition of death sentences for rape convictions might inhibit some victims from pressing charges. The number of prisoners awaiting execution for rape exceeds the number awaiting execution for murder.

Many women suffer exposure to violence through their recruitment, often through deception, into prostitution. Although illegal, prostitution remains widespread. An International Labor Organization (ILO) study estimated that 500,000 Filipino women are engaged in prostitution within the country. Most work independently or in small brothels rather than in prominent "entertainment clubs." Penalties for the offense are light, but detained prostitutes are subjected to administrative indignities. The Antivagrancy Act often is used by police officers as a pretext to extort money from prostitutes; those unable to pay may be subjected to sexual abuse. Hotel and travel industry leaders failed to honor their pledges to cooperate with a code endorsed by international tourism groups to stop sex tourism.

Local officials condone a climate of impunity for those who exploit prostitutes--both the "entertainment club" owners and their patrons. Highly publicized official campaigns to close clubs and brothels fail to rescue young women from the abuse, since a few days after such raids, the offending establishments usually are back in business.

The DSWD reported that it rescued victims of illicit recruitment who were trapped in prostitution. DSWD officials noted that the number failed to reflect the true extent of the prostitution problem since it reflected only those who obtained temporary shelter and counseling through the DSWD and local governments. NGO's argue that the Government should first address the abuses of dislocation and homelessness in order to treat effectively the problem of women's exposure to the structural violence inherent in prostitution.

Trafficking in women and children for forced prostitution and forced labor is a problem (see Section 6.f.).

Sexual harassment in the workplace also continues to be a problem; it is thought to be widespread yet underreported due to victims' fear of losing their jobs. Harassment by managers in Special Economic Zones (SEZ's) is thought to be a common practice. Most of the female employees at SEZ's are economic migrants who are required to work long hours and have no independent workers' organization to assist with filing complaints. Women also are hired as contractual employees without benefits in the pressing and sewing industry. Many are subjected to long hours in inadequately ventilated facilities.

In law but not always in practice, women have most of the rights and protections accorded men. The Presidential Commission on the Role of Filipino Women seeks to coordinate programs for women, working closely with NGO's such as the 10 million-member National Council of Women in the Philippines. More women than men enter secondary and tertiary education. A 1997 study by the Asian Development Bank found that women had made important gains toward gender equity in recent years, but the negative effects of the 1997-98 Asian financial crisis still have not been overcome. Unemployment

rates among women are consistently higher than those among men. Women's salaries averaged about 47 percent lower than their male counterparts. Except for government service and jobs in government-owned or government-controlled corporations, women continued to face discrimination in employment.

Church opposition to divorce in this predominantly Roman Catholic nation is strong. However, changes in the legal code have made marriage annulment fairly easy and increasingly common. However, the legal cost precluded this option for many women. The practice of "unofficial divorce" or permanent separation was common among lower income families. In such cases, the wife usually was left with the children, and the husband provided little or no financial support.

Children

Several government agencies have programs devoted to the education, welfare, and development of children. Nevertheless, children faced serious problems in their development. Family poverty forces many school dropouts. Only about 65 percent of children complete the sixth grade. As the grade level goes up, the number of children who stay continues to decline. Public primary and secondary schools are free of tuition charges, but poor families are unable to meet numerous peripheral costs for uniforms, school supplies, shoes, and transportation. The Asian Development Bank expressed concern over an apparent growing inequity in the opportunity for an education as public spending per pupil declines. In the 1980's, public spending covered 80 percent of the cost of elementary education; however, this share declined to only 69 percent by the mid-1990's.

Widespread poverty forces many young children to work. The Department of Labor and Employment (DOLE) worked with the ILO and NGO's to address the problem of widespread child labor. According to the U.N. Children's Fund (UNICEF) and ILO studies, over 2 million children were exposed to hazardous working environments such as quarries, mines, and at docksides in order to earn their living (see Section 6.d.). Trafficking in children for the purpose of forced prostitution is a problem (see Section 6.f.).

The DSWD reported that there were over 50,000 street children in Manila and over 100,000 nationwide. Welfare officials believe that the number is increasing as a result of widespread unemployment in rural areas. Many of these apparently are abandoned children engaged in scavenging or begging.

The family court system adopted in 1998 has helped expedite juvenile and domestic relations cases and served to strengthen safeguards against the sale and trafficking of children abroad. Previously, less specialized courts had tended to regard children as extensions and property of the parents and to favor parental authority over the rights of a child.

Greater public awareness eroded traditional reticence to report abuses against children. DSWD offices cared for children who were the victims of rape. The problem of foreign pedophiles continued to receive significant reporting in the press. The Government continued to prosecute accused pedophiles.

Despite government efforts at law enforcement and expanded children's programs, it is estimated that some 60,000 children are involved in the commercial sex industry. Children in the "entertainment industry" work long, odd hours (10 to 12 hours) from evening until early morning. Typically they come from families with unemployed or irregularly employed parents.

In June the CHR protested the increased recruitment of minors (boys and girls under the age of 18) by the Communist NPA. The growing number of NPA members under 18 years of age who were captured or surrendered to government forces confirmed the widespread use of children in both combat and noncombat roles by the NPA. The DSWD provided care and assistance to these children after they were turned over by the military to the civilian authorities (see Section 1.g.).

People with Disabilities

The law provides for equal physical access for the disabled to all public buildings and establishments, and for "the rehabilitation, self development, and self-reliance of disabled persons and their integration into the mainstream of society." Advocates for the rights of the disabled contend that the law has been ineffective because implementing regulations have not

been published, and because government programs are palliative rather than focused on reintegration. Reportedly only about 2 percent of an estimated 3.5 million disabled citizens received access to services.

In July the Supreme Court ruled that 27 deaf mute bank workers were regular employees, entitled to security of tenure, and who could be terminated only for authorized cause. The workers had been dismissed as nonpermanent employees after from 3 to 6 years' service.

Indigenous People

Indigenous people live throughout the country but primarily in the mountainous areas of northern and central Luzon and Mindanao. They account for about 18 percent of the national population. Although no specific laws discriminate against indigenous people, the remoteness of the areas that many inhabit and cultural bias prevent their full integration into society. Indigenous children suffer from lack of basic services, health, and education. Because they inhabit mountainous areas also favored by guerrillas, indigenous people suffer disproportionately from counterinsurgency operations.

The 1997 Indigenous Peoples' Rights Act, which was intended to implement constitutional provisions to protect indigenous people, established a National Commission of Indigenous People staffed by tribal members empowered to award certificates of title to lands claimed by the over 12 million native people in the country. It awards "ancestral domain lands" on the basis of communal rather than individual ownership, impeding sale of the lands by tribal leaders. The law requires a process of "informed" consultation and written consent by the indigenous group to allow mining on tribal lands. The law also assigns the indigenous groups the responsibility to preserve forest, watershed, and biodiversity areas in their domains from inappropriate development. However, the Government has been slow to implement the legislation, as it faces strong opposition from mining and agribusiness interests.

Other measures have affected indigenous communities in adverse ways. The 1995 Mining Act continued a legislative trend of promoting mining operations, hydroelectric dams, and other large-scale projects that force indigenous people to relocate and abandon farming and hunting land used for generations.

Indigenous people continued to face legal threats to their claims to ancestral lands from developers, mining interests, and local political interests. The Higaonon people in Mindanao continue to be deprived of portions of their ancestral land by a powerful local landowning family that enforced their removal through a violent demolition conducted by the PNP and private security forces in 1997. The Catholic Bishops Conference of the Philippines continues to express concern over the effects of existing and planned large-scale mining on the livelihood of the many indigenous people of Mindanao.

Religious Minorities

About 5 million Muslims, who constitute 7 percent of the population, reside principally in Mindanao and nearby islands and are the largest single minority group in the country. Historically, they have been alienated from the dominant Christian majority, and government efforts to integrate Muslims into the political and economic fabric of the country have met with only limited success. The national culture, with its emphasis on familial, tribal, and regional loyalties, creates informal barriers whereby access to jobs or resources is provided first to those of one's own family or group. Many Muslims claimed that they continue to be underrepresented in senior civilian and military positions. Provinces in Mindanao that are predominantly Muslim lag behind the rest of the island in almost all aspects of socioeconomic development.

There was progress in improving Christian-Muslim relations following a 1996 government agreement with the insurgent MNLF. In accordance with the agreement, a Southern Philippines Council on Peace and Development was established to coordinate economic growth in 14 provinces in Mindanao, and MNLF chairman Nur Misuari became its chair. Misuari later was elected governor of the autonomous region of Muslim Mindanao, which was established in 1990 to meet the demand of Muslims for local autonomy in areas where they are a majority or a substantial minority. The accord also provided for the integration of MNLF fighters into the armed forces and police.

Although the MNLF agreement has brought somewhat more regional stability, intermittent military clashes with insurgent MILF forces still result in family displacements. In September the plebiscite promised in the 1996 peace agreement between the Government and the MNLF on autonomy for an expanded Islamic region was postponed for 1 year. Misauri favored an even longer delay.

Section 6. Worker Rights

a. The Right of Association

The Constitution and laws provide for the right of workers, including public employees, to form and join trade unions. Although this right is exercised in practice, aspects of the public sector organization law restrict and discourage organizing. Trade unions are independent of the Government and generally free of political party control. Unions have the right to form or join federations or other labor groups.

Although unions claimed to have organized more than 12 percent of the total work force of 29.5 million, only about 541,000 workers, or 14.6 percent of union members, are covered by collective bargaining agreements. According to the DOLE Bureau of Labor Relations, the number of new union registrations fell continuously since 1995. The number of firms, primarily large employers, that used "contractual" labor continued to grow.

Subject to certain procedural restrictions, strikes in the private sector are legal. However, the law requires that all means of reconciliation must be exhausted and that the strike issue must be relevant to the labor contract or the law. The Secretary of Labor and Employment can intervene in some labor disputes by "assuming jurisdiction" and mandating a settlement if the Secretary views the industry involved in the strike as "vital to national security."

Legislation that the ILO Committee of Experts criticized for placing undue restrictions on the right to strike in nonessential services remained unchanged. The Committee remained concerned by the imposition of penalties in cases where strikes were deemed illegal, by restrictions on the right of government workers to strike, and by some restrictions on the right to organize and form a bargaining unit that are in conflict with ILO Convention 87 on freedom of association. Strikes were fewer and shorter in duration. The National Conciliation and Mediation Board (NCMB) reported 53 strikes through November, compared with 89 strikes the previous year. There were 189,000 workdays lost to strikes, compared with 548,000 in 1998.

In May the Associated Labor Unions called a strike of longshoremen at the port of Cebu after a shipping company had fired 14 union members. The DOLE Secretary assumed jurisdiction and the situation was stabilized until July, when 21 union members were fired and a second brief strike was called. In September company security officers fired on striking workers, injuring two persons. In October the National Labor Relations Commission (NLRC) cited the company for unfair labor practices and the fired workers for conducting an illegal strike. The case remained unresolved at year's end.

Union leaders and NGO's express concern that workers involved in union activity face intimidation tactics by management, including physical assaults by security guards. In late 1997, the ILO's Committee on Freedom of Association expressed concern over the violent dispersal of pickets and the brief police detention of union leaders during a 1995 strike at the Telefunken Semiconductor plant near Manila. The management ignored repeated the DOLE Secretary's orders to reinstate workers fired for their strike decision. The company has not reinstated the workers.

Unions have the right to affiliate with international trade union confederations and trade secretariats. Two of the largest trade union centrals, the Trade Union Congress of the Philippines and the Federation of Free Workers, are affiliated with the International Confederation of Free Trade Unions and the World Confederation of Labor, respectively.

b. The Right to Organize and Bargain Collectively

The Constitution provides for the right to organize and bargain collectively. The Labor Code provides for this right for private sector employees and for employees of government owned or government controlled corporations, but the law limits the rights of government workers.

Allegations of intimidation and discrimination in connection with union activities are grounds for review as possible unfair labor practices before the quasijudicial NLRC. Before disputes reach the NLRC, the DOLE provides the services of the NCMB, which settles most of the unfair labor practice disputes raised as grounds for strikes before the strikes can be declared.

Labor law is uniform throughout the country, including the industrial zones, where tax benefits encourage the growth of export industries. However, local political leaders and officials governing these special economic zones have tried to frustrate union organizing efforts by maintaining "union free/strike free" policies. A conflict over interpretation of the SEZ law's provisions for labor inspection has created further obstacles to enforcement of workers' rights to organize. Despite objections from the DOLE, SEZ local directors claim authority to conduct their own inspections as part of the zones' privileges intended by Congress. Hiring often is controlled tightly through "SEZ labor centers," where political ties to local figures play a role in gaining job eligibility. Despite sporadic labor unrest and some organizing efforts, union successes in the SEZ's have been few and marginal. Some mainstream unions avoid a major unionizing effort in the lower-wage SEZ industries such as the garment industry. They consider it unpromising in view of both the organizers' restricted access to the closely guarded zones and the rapid turnover of the young, mainly female staff working on short-term contracts in the zones' many electronics and garment factories.

c. Prohibition of Forced or Compulsory Labor

Forced labor is prohibited, including forced and bonded labor by children; however, despite the Government's generally effective prohibition of forced labor, there were reports of forced or bonded labor by children, mainly in the informal sector. Over 300,000 children aged 17 and younger work as family domestic workers, for whom the minimum age is 15. Some recruiters reportedly bring girls between the ages of 13 and 17 to work in Manila or Cebu homes under terms that involve a "loan" advanced to their parents that the children are obliged to repay through their work. The DOLE continued to address the problem of underage workers in family work settings. Some children reportedly worked to help their parents repay loans from planters. NGO's and the ILO reported that "piggeries" in Bulacan province near Manila no longer appeared to employ underage workers. Trafficking in women and children for purposes of forced prostitution and forced labor is a problem (see Section 6.f.).

Status of Child Labor Practices and Minimum Age for Employment

The law prohibits the employment of children below age 15, except under the direct and sole responsibility of parents or guardians, or where employment in cinema, theater, radio, or television is essential to the integrity of the production. The Labor Code allows employment of those between the ages 15 and 18 for such hours and periods of the day as are determined by the Secretary of Labor but forbids the employment of persons under 18 years of age in hazardous or dangerous work. However, a significant number of children are employed in the informal sector of the urban economy or as unpaid family workers in rural areas.

There are few child labor violations in the formal manufacturing sector. However, children reportedly continue to be employed illegally on the docks of some Mindanao and Visayan ports. Working at a piece rate in the unloading of bulk cargo, the children earn far less than adults would demand for the same work even though they are exposed to harmful dust and chemicals in the ships' holds. Employment of children as divers in dangerous conditions on coral reef fishing vessels reportedly continued. In Mindanao plantations raising bananas for export frequently used children as day laborers in trimming and fertilizing plants and clearing irrigation ditches.

The DOLE and other agencies continue to work closely with UNICEF and the ILO's International Program for the Elimination of Child Labor to reduce violations of child labor laws. The DOLE works with local NGO's to educate the community on the negative aspects of child labor while providing counseling and other outlets for children. The Department of Education, Culture, and Sport participates in an interagency effort to put children back in school.

The DOLE increased its efforts to prosecute violators of child labor laws. In April a labor recruiter was imprisoned after a child whom he had recruited to work at a soybean factory in Mindanao fell into a hopper and was suffocated.

The DOLE and other government agencies applied considerable pressure throughout the year on the companies licensed to engage in hazardous pa-aling fishing methods to enforce the prohibition of underage employees.

The law prohibits forced and bonded labor by children. However, despite government enforcement efforts, there were reports of its use, mainly in prostitution (see Sections 6.c. and 6.f.).

e. Acceptable Conditions of Work

Tripartite regional wage boards set minimum wages. A round of wage increases was implemented late in the year, the first in 2 years. The highest rates are in the National Capital Region (NCR) and the lowest in rural regions. The minimum daily wage for NCR nonagricultural workers is about \$5.60 (223.50 pesos), which does not provide a decent standard of living for a worker and family. With this pay level, at least two family members would have to work full-time to support a family of six above the level of the Government's minimum daily cost of living for the Manila area. The lowest minimum wages are in the autonomous region in Muslim Mindanao, where the daily agricultural wage is approximately \$2.95 (118 pesos). Large numbers of workers do not receive the minimum wage set for their area.

Regional wage board orders cover all private sector workers except domestic helpers and those employed in the personal service of another. Boards outside the NCR exempted some employers because of factors such as establishment size, industry sector, involvement with exports, financial distress, and level of capitalization. These exemptions excluded substantial additional numbers of workers from coverage under the law.

Violation of minimum wage standards is common. Many firms hire employees at subminimum apprentice rates even if there is no approved training in their production-line work. DOLE officials estimate a 30 to 40 percent noncompliance rate with the minimum wage requirement and acknowledge that the shortage of inspectors makes the law difficult to enforce. The Government relies on administrative procedures and moral suasion to encourage voluntary employer correction of violations.

The standard legal workweek is 48 hours for most categories of industrial workers and 40 hours for government workers, with an 8-hour per day limit. An overtime rate of 125 percent of the hourly rate is mandated on ordinary days and 130 percent on rest days and holidays. The law mandates a full day of rest weekly. However, there is no legal limit on the number of overtime hours that an employer may require. Enforcement of work week hours is managed through periodic inspections by the DOLE.

Several NGO's seek to protect the rights of the country's more than 5 million overseas workers. The Government uses financial sanctions and criminal charges against unfair practices by domestic recruiting agencies. Although the Philippine Overseas Employment Agency has registered and supervised domestic recruiters' practices successfully, the Government largely is unable to ensure workers' protection overseas. It seeks cooperation from receiving countries and proposes migrant worker rights conventions in international forums. The Government also provides assistance through its diplomatic missions in countries with substantial numbers of migrant workers.

A comprehensive set of occupational safety and health standards exists in law. The DOLE has responsibility for policy formulation and review of these standards, but with fewer than 300 inspectors nationwide, actual enforcement often is carried out by local authorities. DOLE officials acknowledge that the number of inspectors is inadequate for the number of work sites

in need of visits. Statistics on actual work-related accidents and illnesses are incomplete, as incidents (especially in agriculture) are underreported. Workers do not have a legally protected right to remove themselves from dangerous work situations without risking loss of employment.

f. Trafficking in Persons

The law does not specifically prohibit trafficking in persons, but the Government used laws against related illegal commerce to address trafficking. Trafficking in women and children is a problem. Many women seek employment overseas and are particularly vulnerable to exploitation by unethical recruiters who promise attractive jobs or, in some cases, arrange marriages with foreign men. Some eventually work as prostitutes or suffer abuse by their foreign employers or husbands. Those recruited to work as maids, entertainers, or models may while overseas be forced to participate in public shows or dances where nudity and the prospect of sex are the principal attractions. Others knowingly accept questionable jobs to support parents, children, or siblings with their remittances. The Government has continued its efforts to end illegal recruiting and, by raising age, educational, and professional standards for young women seeking jobs abroad, has tried to discourage employment migration. The 1995 Migrant Workers and Overseas Filipinos Act sought to provide the Government with greater financial resources and improved authority to combat these problems. However, NGO's believe that these measures have not been adequate since traffickers remain numerous and effective in luring women with promises of lucrative overseas contracts. The Government is the host and cosponsor of the Asian Regional Initiative Against Trafficking in Women and Children, scheduled for March 2000. The goal of this conference is the formulation of a comprehensive action plan to combat trafficking within and from Asia, including strategies for prevention, protection, and prosecution.

Child trafficking by illegal recruiters often brought children from poor rural areas to low-paying jobs in cities. The family court system adopted in 1998 has helped expedite juvenile and domestic relations cases and served to strengthen safeguards against the sale and trafficking of children abroad. Previously, less specialized courts had tended to regard children as extensions and property of the parents and to favor parental authority over the rights of a child.

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